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Mishnah Bava Kamma 6

Koren - Steinsaltz

6

הַכּוֹנֵס צֹאן לַדִּיר, וְנָעַל בְּפָנֶיהָ כָּרָאוּי, וְיָצְאָה וְהִזִּיקָה, פָּטוּר. לֹא נָעַל בְּפָנֶיהָ כָּרָאוּי, וְיָצְאָה וְהִזִּיקָה, חַיָּב. נִפְרְצָה בַלַּיְלָה אוֹ שֶׁפְּרָצוּהָ לִסְטִים, וְיָצְאָה וְהִזִּיקָה, פָּטוּר. הוֹצִיאוּהָ לִסְטִים, לִסְטִים חַיָּבִים:

In the case of **one who brought** his flock of **sheep into the pen and locked** the door **before it** in a manner that is **appropriate, and** despite this sheep **went out and caused damage** in another person's field by eating produce or trampling it, the owner is **exempt,** since he safeguarded the animals appropriately. If **he did not lock** the door **before** the sheep in a manner that is **appropriate, and** sheep **went out and caused damage,** the owner is **liable,** since his negligence led to the damage. If the owner locked the door appropriately but the wall of the pen **was breached at night, or bandits breached it, and** sheep subsequently **went out and caused damage** by eating or trampling, the owner of the sheep is **exempt** from liability. If the **bandits** themselves **took** the sheep **out** of the pen and the animals subsequently caused damage, the **bandits** are **liable.**

הִנִּיחָהּ בַּחַמָּה, אוֹ שֶׁמְּסָרָהּ לְחֵרֵשׁ, שׁוֹטֶה וְקָטָן, וְיָצְאָה וְהִזִּיקָה, חַיָּב. מְסָרָהּ לְרוֹעֶה, נִכְנָס רוֹעֶה תַּחְתָּיו. נָפְלָה לְגִנָּה וְנֶהֱנֵית, מְשַׁלֶּמֶת מַה שֶּׁנֶּהֱנֵית. יָרְדָה

כְּדַרְכָּהּ וְהִזִּיקָה, מְשַׁלֵּמֶת מַה שֶּׁהִזִּיקָה. כֵּיצַד מְשַׁלֶּמֶת מַה שֶּׁהִזִּיקָה, שָׂמִין בֵּית סְאָה בְּאוֹתָהּ שָׂדֶה, כַּמָּה הָיְתָה יָפָה וְכַמָּה הִיא יָפָה. רַבִּי שִׁמְעוֹן אוֹמֵר, אָכְלָה פֵּרוֹת גְּמוּרִים מְשַׁלֶּמֶת פֵּרוֹת גְּמוּרִים. אִם סְאָה סְאָה, אִם סָאתַיִם סָאתַיִם:

If the owner **left** the animal **in the sun,** causing it to suffer, **or** if **he conveyed it to a deaf-mute, an imbecile, or a minor,** who are not able to safeguard it, **and** the animal **went out and caused damage,** the owner is **liable** because he was negligent. If the owner **conveyed** the animal **to a shepherd** to care for it, **the shepherd enters in his place** and is responsible for the damage. If the animal **fell into a garden and derives benefit** from produce there, its owner **pays** for **the benefit that** it **derives** and not for other damage caused. If the animal **descended** into the garden **in its usual manner and caused damage** there, its owner **pays** for **what it damaged. How does** the court appraise the value of the damage when the owner **pays** for **what it damaged?** The court **appraises** a large piece of land with **an area required for** sowing **one *se'a* of seed** [***beit se'a***] **in that field,** including the garden bed in which the damage took place. This appraisal includes **how much it was worth** before the animal damaged it **and how much is it worth** now, and the owner must pay the difference. The court appraises not only the garden bed that was eaten or trampled, rather the depreciation in value of the bed as part of the surrounding area. This results in a smaller payment, as the damage appears less significant in the context of a larger area. **Rabbi Shimon says:** This principle of appraisal applies only in a case where the animal ate unripe produce; but if **it ate ripe produce,** the owner **pays** the value of the **ripe produce.** Therefore, **if** it ate **one *se'a*** of produce, he pays for **one *se'a*,** and **if** it ate **two *se'a*,** he pays for **two *se'a*.**

הַמַּגְדִּישׁ בְּתוֹךְ שָׂדֶה שֶׁל חֲבֵרוֹ שֶׁלֹּא בִרְשׁוּת, וַאֲכָלָתַן בְּהֶמְתּוֹ שֶׁל בַּעַל הַשָּׂדֶה, פָּטוּר. וְאִם הֶזִּיקָה בָהֶן, בַּעַל הַגָּדִישׁ חַיָּב. וְאִם הִגְדִּישׁ בִּרְשׁוּת, בַּעַל הַשָּׂדֶה חַיָּב:

In a case of **one who stacks** his produce **in another's field without permission** from the owner of that field, **and an animal belonging to the owner of the field eats** the produce, the owner of the field is **exempt. And if** the animal **is injured by** the produce, **the owner of the stack** is **liable. But if he stacked** them in that field **with permission, the owner of the field** is **liable** for damage caused to the produce.

הַשּׁוֹלֵחַ אֶת הַבְּעֵרָה בְּיַד חֵרֵשׁ, שׁוֹטֶה וְקָטָן, פָּטוּר בְּדִינֵי אָדָם וְחַיָּב בְּדִינֵי שָׁמָיִם. שָׁלַח בְּיַד פִּקֵּחַ, הַפִּקֵּחַ חַיָּב. אֶחָד הֵבִיא אֶת הָאוּר, וְאֶחָד הֵבִיא אֶת הָעֵצִים, הַמֵּבִיא אֶת הָעֵצִים חַיָּב. אֶחָד הֵבִיא אֶת הָעֵצִים, וְאֶחָד הֵבִיא אֶת הָאוּר, הַמֵּבִיא אֶת הָאוּר חַיָּב. בָּא אַחֵר וְלִבָּה, הַמְלַבֶּה חַיָּב. לִבְּתָה הָרוּחַ, כֻּלָּן פְּטוּרִין. הַשּׁוֹלֵחַ אֶת הַבְּעֵרָה וְאָכְלָה עֵצִים, אוֹ אֲבָנִים, אוֹ עָפָר, חַיָּב, שֶׁנֶּאֱמַר (שמות כב) כִּי תֵצֵא אֵשׁ וּמָצְאָה קוֹצִים וְנֶאֱכַל גָּדִישׁ אוֹ הַקָּמָה אוֹ הַשָּׂדֶה, שַׁלֵּם יְשַׁלֵּם הַמַּבְעִיר אֶת הַבְּעֵרָה. עֻבְרָה גָּדֵר שֶׁהוּא גָּבוֹהַ אַרְבַּע אַמּוֹת, אוֹ דֶּרֶךְ הָרַבִּים, אוֹ נָהָר, פָּטוּר. הַמַּדְלִיק בְּתוֹךְ שֶׁלּוֹ, עַד כַּמָּה תַּעֲבֹר הַדְּלֵקָה. רַבִּי אֶלְעָזָר בֶּן עֲזַרְיָה אוֹמֵר, רוֹאִין אוֹתוֹ כְּאִלּוּ הוּא בְּאֶמְצַע בֵּית כּוֹר. רַבִּי אֱלִיעֶזֶר אוֹמֵר, שֵׁשׁ עֶשְׂרֵה אַמּוֹת, כְּדֶרֶךְ רְשׁוּת הָרַבִּים. רַבִּי עֲקִיבָא אוֹמֵר, חֲמִשִּׁים אַמָּה. רַבִּי שִׁמְעוֹן אוֹמֵר, שַׁלֵּם יְשַׁלֵּם הַמַּבְעִיר אֶת הַבְּעֵרָה (שמות כב), הַכֹּל לְפִי הַדְּלֵקָה:

One who sends a fire, i.e., places a burning object, **in the hand of a deaf-mute, an imbecile, or a minor** is **exempt** for any damage later caused by the fire **according to human laws but liable according to the laws of Heaven.** If **he sent** it **in the hand of a** halakhically **competent** person, **the** halakhically **competent** person is **liable,** not the one who sent him. If **one** person **brought the fire, and one** other person subsequently **brought the wood,** causing the fire to spread, **the one who brought the wood** is **liable** for any damage caused. Conversely, if **one** person first **brought the wood, and** subsequently **one** other person **brought the fire, the one**

who brought the fire is **liable,** since it was he who actually kindled the wood. If **another came and fanned** the flame, and as a result the fire spread and caused damage, **the one who fanned it** is **liable,** since he is the proximate cause of the damage. If **the wind fanned** the flames, **all** the people involved are **exempt,** since none of them actually caused the damage. If one **sends** forth **a fire,** i.e., allows it to escape, **and it consumes wood, or stones, or earth,** he is **liable, as it is stated: "If a fire breaks out, and catches in thorns, so that a stack of grain, or standing grain, or the field, is consumed, the one who kindled the fire shall pay compensation"** (**Exodus 22:5**), which teaches that he is liable also for destroying the field itself. If one kindled a fire that **crossed a fence that is four cubits high, or** if the fire crossed **the public thoroughfare, or** if the fire crossed **a river,** and in each case it caused damage on the other side, he is **exempt** from liability. In a case of **one who kindles** a fire **on his own** premises, **up to what** distance **may the fire travel** within his property for him to still bear liability for damage caused? **Rabbi Elazar ben Azaria says:** The court **views his** location where he kindled the fire **as if it were in the center of a *beit kor*.** Therefore, if the fire spreads and causes damage farther away than half a *beit kor*, the one who kindled the fire is exempt, since he could not anticipate that the fire would spread so far. **Rabbi Eliezer says:** One is liable up to a distance of **sixteen cubits, like** the width of **a public thoroughfare. Rabbi Akiva says:** One is liable up to a distance of **fifty cubits. Rabbi Shimon says:** The verse states: **"The one who kindled the fire shall pay** [***shallem yeshallem***] **compensation"** (**Exodus 22:5**), to teach that **everything is according to the fire.**

הַמַּדְלִיק אֶת הַגָּדִישׁ, וְהָיוּ בּוֹ כֵּלִים וְדָלָקוּ. רַבִּי יְהוּדָה אוֹמֵר, יְשַׁלֵּם מַה שֶּׁבְּתוֹכוֹ. וַחֲכָמִים אוֹמְרִים, אֵינוֹ מְשַׁלֵּם אֶלָּא גָּדִישׁ שֶׁל חִטִּין אוֹ שֶׁל שְׂעֹרִים. הָיָה גְּדִי כָּפוּת לוֹ וְעֶבֶד סָמוּךְ לוֹ וְנִשְׂרַף עִמּוֹ, חַיָּב. עֶבֶד כָּפוּת לוֹ וּגְדִי סָמוּךְ לוֹ וְנִשְׂרַף עִמּוֹ, פָּטוּר. וּמוֹדִים חֲכָמִים לְרַבִּי יְהוּדָה בְּמַדְלִיק אֶת הַבִּירָה, שֶׁהוּא מְשַׁלֵּם כָּל מַה שֶּׁבְּתוֹכוֹ, שֶׁכֵּן דֶּרֶךְ בְּנֵי אָדָם לְהַנִּיחַ בַּבָּתִּים:

With regard to **one who kindles a stack** of wheat or barley **and there were vessels** concealed **inside** the stack **and they** caught fire and **burned** together with the stack, **Rabbi Yehuda says:** The one who kindled the fire also **pays** compensation **for what was inside** the stack, **but the Rabbis say: He pays** compensation **only** for **the stack of wheat or barley,** as the case may be, and he is not responsible for that which was concealed within it. If **there was a goat tied to** the stack of grain, **and** there was a Canaanite **slave nearby** who was not tied to it, **and** both the goat and the slave **were burned** together **with** the stack and killed, the one who kindled the fire is **liable** to pay compensation for both. Conversely, if the **slave was tied** to the stack **and** there was **a goat nearby** that was not tied to it, **and** they were both **burned together with it,** the one who kindled the fire is **exempt** from payment for damage because he is liable to receive capital punishment for murder, and he is punished only for the greater transgression. **And the Rabbis,** who disagree with Rabbi Yehuda and exempt one from payment for vessels concealed inside the stack in the field, **concede to Rabbi Yehuda** that if one **sets fire to a building,** he **pays** compensation **for everything that was** burned **inside it, since it is the** normal **way of people to place** items **in houses.**

גֵּץ שֶׁיָּצָא מִתַּחַת הַפַּטִּישׁ וְהִזִּיק, חַיָּב. גָּמָל שֶׁהָיָה טָעוּן פִּשְׁתָּן וְעָבַר בִּרְשׁוּת הָרַבִּים, וְנִכְנַס פִּשְׁתָּנוֹ לְתוֹךְ הַחֲנוּת, וְדָלְקוּ בְּנֵרוֹ שֶׁל חֶנְוָנִי וְהִדְלִיק אֶת הַבִּירָה, בַּעַל הַגָּמָל חַיָּב. הִנִּיחַ חֶנְוָנִי נֵרוֹ מִבַּחוּץ, הַחֶנְוָנִי חַיָּב. רַבִּי יְהוּדָה אוֹמֵר, בְּנֵר חֲנֻכָּה פָּטוּר:

In the case of **a spark that emerged from under the hammer** of a blacksmith and started a fire, **causing damage,** the blacksmith is **liable** for the damage caused. In the case of **a camel that was laden with flax and was passing through the public domain, and its flax extended into a store and** the flax **caught fire from a lamp** in the store **belonging to the storekeeper, and** as a result of the burning flax the camel **set fire to the building** together with all its contents, **the owner of the**

camel is **liable.** But if **the storekeeper placed his lamp outside,** thereby causing the flax on the camel to catch fire, and consequently the building was set on fire, **the storekeeper** is **liable. Rabbi Yehuda says: In** a case where the lamp placed outside was **a Hanukkah lamp,** the storekeeper is **exempt,** since it is a mitzva for a Hanukkah lamp to be placed outside.